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Case Number: 25PSCV04317 Hearing Date: September 29, 2026 Dept: G

Plaintiff Nicole K Mathalon's Motion for
Attorney's Fees, Costs, and Expenses

Respondent:

Defendant General Motors LLC

TENTATIVE

RULING

Plaintiff

Nicole K Mathalon's Motion for Attorney's Fees, Costs, and Expenses is GRANTED

in a reduced amount. Plaintiff Nicole K

Mathalon is AWARDED a total of \$28,545.50.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective
motor vehicle. On May 10, 2024,

plaintiff Nicole K Mathalon (Mathalon) bought an SUV manufactured by defendant General
Motors LLC (GM).

On December

3, 2025, Mathalon filed the Complaint, alleging causes of action for (1) breach
of implied warranty, (2) breach of express warranty, (3) replacement and
reimbursement, and (4) failure to service and repair.

On

July 29, 2026, Mathalon filed this motion for attorney's fees. On September 15, 2026, GM filed the opposition, and on September 18, 2026, Mathalon filed the reply.

The
motion is set for hearing on September 29, 2026.

ANALYSIS

Mathalon
moves for an award of attorney's fees and costs in the amount of \$32,629.20. For the following reasons, the motion for attorney's fees is GRANTED in the reduced amount of \$28,545.50.

Legal
Standard

"If
the buyer prevails in an action under this section, the buyer shall be allowed
by the court to recover as part of the judgment a sum equal to the aggregate
amount of costs and expenses, including attorney's fees based on actual time
expended, determined by the court to have been reasonably incurred by the buyer
in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "[T]he negotiation of a
possible settlement
does not excuse the failure to proceed with due diligence in the filing of
pleadings, absent some understanding that pleadings need not be filed while
negotiations are in process." (Turley
v. Turley (1967) 254 Cal.App.2d 169, 173.)
In the context of an award of attorneys' fees "the time expended by
attorneys in obtaining a reasonable fee is justifiably included in the
attorneys' fee application, and in the court's fee award." (Serrano v. Unruh (1982) 32 Cal.3d
621, 631.) "[I]t is inappropriate and an
abuse of a trial court's discretion to tie an attorney fee award to the amount
of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act
action." (Hanna v. Mercedes-Benz USA,
LLC (2019) 36 Cal.App.5th 493, 510.)

In
assessing attorney's fees under the Song-Beverly Act, a trial court must make
an "initial determination of the actual time expended; and then to ascertain
whether under all the circumstances of the case the amount of actual time
expended and the monetary charge being made for the time expended are

reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys’ fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016)

245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate. . . .” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) “[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

A

“court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As

the prevailing party, Mathalon is entitled to attorney’s fees and costs. To decide the award, the court considers the

reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness of the Claimed Hours

The

Song-Beverly Act provides for the recovery of “costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer.”

(Civ. Code, § 1794, subd. (d).) A

verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred.” (Hadley

v. Krepel (1985) 167 Cal.App.3d 677, 682.)

However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of

North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since “padding in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Mathalon’s

counsel claims 69.7 hours of legal work.

(See Mot., p. 8.) The

verified fee bill is prima facie evidence of the legal services necessarily incurred. (See Geoulla Decl.,

Exh. 2; see also Hadley, supra, 167 Cal.App.3d at 682.) To determine the reasonableness of the claimed hours, the court considers the arguments from GM’s opposition. The court categorizes the challenged billing entries with which GM takes issue: (1) pre-litigation work, (2) excessive time on routine tasks, (3) clerical work completed by attorneys, (4) redundant tasks, and (5) anticipated time. (See Opp., pp. 4–8.)

Pre-Litigation Work

GM

argues a reduction in the attorney’s fee award is required for “excessive time on client intake and pre-litigation tasks,” which includes ordinary business expenses and time that was block-billed.

(Opp., p. 4, capitalization changed.)

The court agrees.

The

court must limit the attorney's fee award to only compensate fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd.

(d).) The plain language of Section

1794, subdivision (d) necessarily precludes an award based on work that was not reasonably incurred in the commencement and prosecution of the action. The court has the discretion "to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are not." (In

re Marriage of Nassimi (2016) 3 Cal.App.5th 667, 695–696, cleaned up.) "If counsel cannot . . . define [their] billing entries so as to meaningfully enlighten the court of those related to the [fee claim]," the court may "exercise its discretion in assigning a reasonable percentage to the entries," or "simply cast them aside." (Bell v. Vista Unified School Dist. (2000) 82 Cal.App.4th 672, 689.)

The

court reviewed the specific entries GM challenged as ordinary business expenses and found two that were ordinary business expenses. Mathalon called counsel on November 24, 2025, and counsel billed 0.1 hours for listening to the voicemail. Later that day, counsel billed 1.3 hours for the initial consultation with the client, including time for counsel to review the retainer agreement. The court finds that it would not be appropriate for counsel to charge their own client for this entire time, so it would also be inappropriate to shift the cost of this time to GM. (See Hensley v. Eckerhart (1983) 461 U.S. 424, 434; see also Melnyk, supra, 64 Cal.App.3d at 623.) For the 1.4 hours counsel billed at the beginning of the attorney-client relationship, the court finds that counsel should only recover for 1.0 hour.

The

court also reviewed the specific entries GM challenged as block-billed. However, the two entries that could be characterized as block-billed add up to less than three (3) hours. (See Opp., p. 4, citing Geoulla Decl., Exh. 2, pp. 1, 6–7.) Instead of billing separately for multiple small tasks on the same day, Mathalon's counsel billed them together. The court finds this demonstrates efficiency as opposed to inefficiency, so the court declines to reduce the claimed time for block-billing.

Thus,
the court reduces the award of attorney's fees for pre-litigation work by 0.4 hours (0.4 hours from Ryan A. Youabian).

Excessive
Time on Routine Tasks

GM
argues a reduction in the attorney's fee award is required for the "excessive" time used drafting the Complaint using a template, reviewing GM's Answer, preparing and reviewing initial disclosures, and tasks related to depositions. (See Opp., pp. 4–8.) The court agrees.

The
court does not award attorney's fees if the time billed is excessive for the type of work. (See Civ. Code, § 1794, subd. (d); see also Premier Medical Management Systems, Inc., supra, 163 Cal.App.4th at 564.) The court may reduce an attorney's fee award if "plaintiff's counsel failed to act efficiently." (Mikhaeilpoor, supra, 48 Cal.App.5th at 256.)

The
court reviewed the specific entries GM challenged as excessive and found that Mathalon's counsel spent excessive time drafting the Complaint and reviewing the deposition of GM's person most knowledgeable. Counsel billed 1.9 hours from December 2, 2025 to December 10, 2025 to draft the Complaint and other documents initiating litigation, but the court finds counsel should have drafted the Complaint and these related documents in only 1.0 hour. Counsel also billed 2.9 hours to review the video and transcript of a deposition, which was not necessary. The court did not find that any other billing entries were excessive or inflated.

Thus,
the court reduces the award of attorney's fees for excessive time by 4.8 hours (1.9 hours from Bryan Geoulla and 2.9 hours from Ryan A. Youabian).

Clerical
Work Completed by Attorneys

GM

argues a reduction in the attorney's fee award is required for "administrative/clerical time [and] internal communications." (Opp., p. 5, capitalization changed.) The court disagrees.

On

one hand, a trial court may reduce attorney's fees for clerical work completed by an attorney. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187, finding that the trial court properly reduced attorney's fees where attorneys billed clerical work at partners' rates.) On the other hand, courts have also found that non-attorney work may be included in an award of attorney's fees. (See *City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7, finding that support services provided to attorneys may be included in an award of attorney's fees.) In either case, it is within the trial court's discretion to determine whether clerical work should be included in the award of attorney's fees. (See *Roe*, supra, 29 Cal.App.5th at 312.)

The

court reviewed the entries cited as clerical but found that they were reasonably incurred in the prosecution of the action. Reviewing emails from colleagues, opposing counsel, and service providers is not only reasonable but necessary in conducting litigation on the clients behalf, and the court finds that the time billed was not excessive for the type of work.

Thus,

the court declines to reduce the award of attorney's fees for clerical work completed by attorneys.

Redundant

Tasks

GM

argues a reduction in the attorney's fee award is required for "redundant and excessive client communications." (Opp., p. 6, capitalization changed.) The court disagrees.

The court does not award attorney's fees for work that is unnecessarily duplicative. (See Civ. Code, § 1794, subd. (d); see also Mikhaeilpoor, supra, 48 Cal.App.5th at 256.)

The court reviewed the entries cited as redundant but found that they were reasonably incurred in the prosecution of the action. An attorney's communication with their client is not only reasonable but necessary in conducting litigation on the clients behalf, and the court finds that the time billed was not excessive for the type of work.

Thus, the court declines to reduce the award of attorney's fees for unnecessarily redundant tasks.

Anticipated
Time

GM argues a reduction in the attorney's fee award is required for the fee motion because the "anticipated" fees are "wholly speculative." (Opp., p. 6.)

The court must base its award of attorney's fees on "actual time expended." (Civ. Code, § 1794, subd. (d).) The plain language of Section 1794, subdivision (d) necessarily precludes an award based on speculative fees.

The motion anticipates 2.8 hours in connection with reviewing the opposition, drafting the reply, and attending the hearing. (See Mot., p. 8.) Anticipated fees are speculative and not recoverable as "actual time expended." (Civ. Code, § 1794, subd. (d).)

Thus, the court reduces the award of attorney's fees for anticipated time by 2.8 hours (2.8 hours from Bryan Geoulla)

Therefore,

the court finds Mathalon substantiated 61.7 of the 69.7 hours claimed by counsel in this litigation.

Reasonableness
of Counsel's Rates

The trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating, “experienced trial judges are the best judges of the value of professional services rendered in their courts.”) To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here,
Mathalon’s counsel requests hourly rates as outlined by this table.

Name

Admission

Rate

Ryan A. Youabian

2021

\$495

Bryan Geoulla

2022

\$450

Michael Josephson

2025

\$350

Erik Khorovsky

2025

\$350

Counsels'

declarations provide an overview of the experience and credentials for each listed attorney. (Youabian Decl., ¶¶ 1, 4–9; Geoulla Decl., ¶¶ 8–9, 11–13; Josephson Decl., ¶¶ 1, 4–8; Khorovsky Decl., ¶¶ 1, 4–8.) The court considered counsels' declarations, the Laffey Matrix, and the cited decisions of other courts. (See Geoulla Decl., ¶ 29, citing the Laffey Matrix.) Based on a review of this case compared to other Los Angeles-area counsel in similar lemon law cases, the court finds that the rates charged by counsel are reasonable.

As

stated above, some attorneys failed to substantiate all of the hours claimed. Ryan A. Youabian billed 24.3 hours and substantiated 21.0 hours at a rate of \$495, so the court reduces the award by \$1,633.50. Bryan Geoulla billed 18.8 and substantiated 14.1 hours at a rate of \$450, so the court reduces the award by \$2,115.00.

Therefore,

the court finds the appropriate award of attorney's fees is \$26,050.00 before applying any multiplier.

Lodestar

Multiplier

The

factors that courts look at to determine if a multiplier is reasonable are:

“(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at 1132.)

“[T]he purpose of a fee enhancement is primarily to compensate the

attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases.” (Id. at 1138.) When a case is not complicated, “the request for a multiplier [is] specious.” (Mikhaeilpoor, supra, 48 Cal.App.5th at 255.)

Here, Mathalon does not request a lodestar multiplier. (See Mot., pp. 4, 10.) Therefore, the court finds it is not reasonable to apply a lodestar multiplier to the award of reasonable attorney’s fees of \$26,050.00.

Costs and Expenses

A prevailing plaintiff has a right to recover all costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Mathalon’s counsel claims \$2,830.70 in costs and expenses. (See Mot., pp. 2, 4, 10–11; see also Memo. of Costs, p. 1.) The court considers the cost invoices and the parties’ arguments to determine the reasonableness of the claimed costs. Even though Mathalon contends that GM may only object to the claimed costs by a properly noticed motion to strike or tax costs, the court finds the parties’ briefs instructive in determining whether Mathalon’s claimed costs were reasonably necessary and reasonable in amount. (See Reply, p. 11; see also Code Civ. Proc., § 1033.5, subds (c)(2)–(c)(3).) The court categorizes the challenged costs with which GM takes issue: (1) “other” costs and (2) costs incurred after settlement offer. (See Opp., pp. 9–10.)

Other Fees

GM argues a reduction in the cost award for “other” costs is required because they are not a statutory category of costs. (Opp., p. 9.) The court agrees.

Costs not specified by statute are allowable in the

court's discretion, but they must be specifically pleaded. (See Code Civ. Proc., § 1033.5, subd. (c)(4); see also *Jones v. Union Bank of Cal.* (2005) 127 Cal.App.4th 542, 551, explaining that “[b]ecause costs other than those allowed under section 1033.5 are not based on statute, they must be specifically pleaded and proved at trial rather than included in a memorandum of costs.”)

GM highlights that Mathalon does not specifically plead costs labeled in the memorandum of costs as “other.” (Opp., p. 9, citing Memo. of Costs, p. 1.) Mathalon did not address this category of claimed costs in her reply. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20, finding that a party that fails to argue an issue “abandon[s] the issue.”)

Thus, the court reduces the cost award for “other” costs by \$335.20.

Costs Incurred After Settlement Offer

GM argues a reduction in the cost award is required for the cost of a deposition transcript, a court reporter, and an expedited fee because they were incurred after GM sent Mathalon the settlement offer. (See Opp., pp. 9–10.) The court disagrees.

Code of Civil Procedure section 998 imposes cost-shifting consequences only where a party rejects a settlement offer and then fails to obtain a more favorable result. (See Code Civ. Proc., § 998, subd. (c); see also *Duale v. Mercedes-Benz USA, LLC* (2007) 148 Cal.App.4th 718, 726.) Until a case settles, a plaintiff’s attorney is obligated to prove the plaintiff’s case at trial. (See *Goglin*, supra, 4 Cal.App.5th at 473.)

Even though Mathalon incurred costs after GM proposed its settlement, Mathalon’s counsel had an obligation to prosecute the case until Mathalon accepted the offer. (See *Goglin*, supra, 4 Cal.App.5th at 473.) It would be inappropriate for Mathalon to recover costs after GM’s settlement offer only if her counsel incurred post-offer costs to increase the amount of the cost award, but the records does not suggest that Mathalon’s counsel unnecessarily incurred costs solely to disadvantage GM.

Thus, the court declines to reduce the cost award for costs incurred after the settlement offer.

Therefore, Mathalon is entitled to \$2,495.50 of the \$2,830.70 claimed in costs and expenses.

Accordingly, the motion for attorney's fees, costs, and expenses is GRANTED in a reduced amount. Mathalon is AWARDED a total of \$28,545.50.

CONCLUSION

For these reasons, the motion for attorney's fees, costs, and expenses is GRANTED in a reduced amount. Plaintiff Nicole K Mathalon is AWARDED a total of \$28,545.50.